

113	Cruz vs. Level 23 Fab Inc. 2022-01295952	Motion for Approval of PAGA Settlement The court has reviewed and considered the parties’ joint statement (ROA 91) regarding plaintiff’s motion for approval of a \$50,000 PAGA settlement. The hearing on plaintiff’s motion for approval is continued to November 19, 2026 at 2:00 p.m. in Department CX102. All supplemental papers shall be filed 16 court days prior to the hearing and otherwise consistent with the court’s prior minute order (ROA 84). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
114	Wilson vs. American First Credit Union 2024-01391465	Motion for Final Approval Class/PAGA Settlement Plaintiff Dorsha Wilson’s Motion for Final Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On 4/3/2024, Plaintiff Dorsha Wilson, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant American First Credit Union. (ROA #2.) The operative complaint is the first amended complaint (FAC), filed on 7/14/2024 per stipulation and order, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #47.) On 8/1/2025, Plaintiff filed the Motion for Preliminary Approval of Class Action Settlement. (ROA #62.) On 3/5/2026, at the 2nd hearing, the Court granted the motion. (ROA #88.) On 3/6/2026, the Court entered the signed order granting preliminary approval. (ROA #91.) On 7/27/2026, Plaintiff filed the instant Motion for Final Approval of Class Action and PAGA Settlement. (ROA #110.) The motion seeks approval of the Joint Stipulation of Class Action and PAGA Settlement and First Amendment to Class Action Settlement Agreement (collectively, “Settlement Agreement”), which provides for the settlement of Plaintiff’s class and PAGA claims for the non-reversionary gross settlement amount (“GSA”) of \$625,000. The GSA includes \$50,000 allocated for PAGA penalties. The Class is comprised of 208 Class Members, defined as “all current and former hourly-paid or non-exempt employees who worked for Defendant in the State of California at any time during the Class Period.” The Class Period is 4/3/2020 through 5/11/2025. The settlement also includes 141 Aggrieved Employees, defined as “all current and former hourly-paid or non-exempt employees who worked for Defendant in the State of California at any time during the PAGA Period.” The PAGA Period is 4/3/2023 through 5/11/2025. The settlement administrator, ILYM Group, Inc., reports as follows:

- On 3/27/2026, the administrator sent class notices via U.S. Mail to 208 Class Members, including 141 Aggrieved Employees .
- As of 7/17/2026:
 - Six (6) class notices were returned to the administrator as undeliverable. After skip tracing, the administrator remailed 4 notices, but 2 remained undeliverable.
 - One (1) request for exclusion was received from Lisa A. Davila, who will not be bound by the judgment in this case.
 - No objections, or workweek disputes were received.

Therefore, 207 of 208 Class Members or 99.5% of the Class is participating in the settlement.

The Court concludes that the \$625,000 settlement is fair, adequate, and reasonable, and in the best interests of the Class Members. The Court also concludes that the notice to the Class was adequate. The Court also certifies the defined Class for settlement purposes only.

The Court concludes that an attorneys' fee award totaling \$187,500 or 30% of the GSA, constituting a 1.37 multiplier against the lodestar amount, is fair, adequate, and reasonable for a class and settlement of this size, including considering the action's contingent nature and the results achieved.

The Court also concludes that litigation costs should not include overhead or nonrecoverable items such as postage. Therefore, the Court deducts \$17.12 from Lawyers for Justice's requested amount and awards that firm \$17,927.21.

The Court further concludes that a Class Representative Enhancement Award of \$5,000 is fair, adequate, and reasonable for a class and settlement of this size, considering that there was nothing extraordinary about Plaintiff's contribution to the case.

Accordingly, the Court approves the following specific awards and disbursements from the GSA:

- Attorneys' fees totaling \$187,500.00 awarded to Class Counsel, split 50-50 between Lawyers for Justice and Parker & Minne per Plaintiff's and counsel's fee-splitting agreement, with \$93,750.00 awarded to Lawyers for Justice, PC and \$93,750 awarded to Parker & Minne, LLP;
- Litigation costs totaling \$18,457.63 awarded to Class Counsel, with \$17,927.21 awarded to Lawyers for Justice, PC and \$530.42 awarded to Parker & Minne, LLP;
- Settlement administration costs of \$7,350.00 awarded to ILYM Group, Inc.;
- Class Representative Enhancement Award of \$5,000.00 awarded to Plaintiff Dorsha Wilson; and

- \$32,500.00 remitted to the Labor and Workforce Development Agency (LWDA) for its share of the PAGA penalties.

The Net Settlement Amount payable to all Class Members is \$374,192.37, including the \$17,500.00 in PAGA penalties to be distributed to the Aggrieved Employees, in accordance with the terms of the Settlement Agreement. Pursuant to the Settlement Agreement, Defendant is ordered to separately pay all employer payroll taxes owed on the wage portions of the individual settlement payments.

Within five (5) court days, Class Counsel must submit a revised Proposed Order of Final Approval and Judgment with the following revisions:

1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order.
2. Attorney information must be deleted from the caption page.
3. The revised proposed order and judgment should specify the ROA number of counsel Parker's declaration filed in support of this motion, to which the original Settlement Agreement and the First Amendment are attached.
4. The proposed order and judgment should identify by name the class member who opted out and thus will not be bound by the judgment.
5. The proposed order and judgment should also state that no class members submitted workweek disputes.
6. The proposed order and judgment should state that the settlement administrator will post a copy of the order and judgment on the website for 180 days rather than just 60 days.
7. The proposed order and judgment should state that the Court's continuing jurisdiction is pursuant to both California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h).

Final Accounting is set for March 23, 2028, at 2:00 p.m. in Department CX102. Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing date. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Class Members and all others in accordance with the Settlement Agreement, as well as the amount of unclaimed funds, if any, remitted to the State Controller's Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.

Plaintiff is ordered to give notice of this ruling, including to the LWDA, and file proof of service within five (5) court days.